

M/s Suyash Craft And Papers Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 October 2017 · WRIT - C No. 11295 of 2011 · **Writ dismissed for want of prosecution.**

HEADNOTE

Existing consumer alleged tapping of its feeder without Supply Code paragraph 3.4 consent. The Court recorded that paragraph 3.4 of the U.P. Electricity Supply Code, 2005 permits a connection through an original consumer to another consumer only if, among other requirements, the prospective consumer has the original consumer's consent, and accepted the licensee's statement that it would not tap any further consumer to that feeder till further orders. After years of adjournments, the writ was dismissed for want of prosecution when none appeared for the petitioner.

FACTUAL SUMMARY

M/s Suyash Craft And Papers Ltd. challenged PVVNL over tapping another consumer onto the feeder serving its connection. On 24 February 2011 the Court noted that paragraph 3.4 of the U.P. Electricity Supply Code, 2005 allows a connection through an original consumer only with that consumer's consent, which the petitioner said was absent. On 1 March 2011 the licensee stated it would not tap any further consumer to that feeder till further orders. After years of adjournments for a counter-affidavit, none appeared for the petitioner and the writ was dismissed for want of prosecution on 3 October 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.4

tapping through original consumer; consent

HOLDING

Paragraph 3.4 of the Supply Code permits a connection through an original consumer to another consumer if, among other requirements, the prospective consumer takes the original consumer's consent. The writ alleging tapping without such consent was later dismissed for want of prosecution, without a merits decision on the tapping dispute. ¶ 1

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance Existing consumer alleged tapping of its feeder without Supply Code paragraph 3.4 consent. The Court recorded that paragraph 3.4 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER TAPPING ANOTHER CONSUMER ONTO THE PETITIONER'S FEEDER WITHOUT THE ORIGINAL CONSUMER'S CONSENT VIOLATED PARAGRAPH 3.4 OF THE SUPPLY CODE

Petition dismissed for want of prosecution after the licensee's interim statement not to tap further consumers to that feeder. ¶ 1